

Mukesh Goel v. State of U.P. (stay of recovery pending clause 4.3(f)(v) challenge)

High Court of Judicature at Allahabad · Division Bench · 3 August 2016 · Writ-C No. 35701 of 2016 · **Recovery citation stayed against petitioner; dues recoverable from R-7; listed for admission.**

HEADNOTE

The Allahabad High Court connected Mukesh Goel's writ against a recovery citation with Writ-C No. 8370 of 2016, in which clause 4.3(f)(v) of the U.P. Electricity Supply Code, 2005 is under challenge, issued notice to the Advocate General and respondent no. 7, and directed that, pending admission, the recovery citation shall not be enforced against the petitioner while the respondents remain free to recover the dues from respondent no. 7. Validity of the clause and the petitioner's liability were not decided.

FACTUAL SUMMARY

Mukesh Goel filed a writ in the Allahabad High Court against a recovery citation for electricity dues. The petition was ordered to be connected with Writ-C No. 8370 of 2016, in which clause 4.3(f)(v) of the U.P. Electricity Supply Code, 2005 stood challenged. Notice was issued to the Advocate General and respondent no. 7. Counsel for the remaining answering respondents were permitted to file counter affidavits within four weeks.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.3(f)(v)

interim stay of recovery citation pending challenge to clause 4.3(f)(v)

HOLDING

Pending admission of a writ connected with a challenge to clause 4.3(f)(v) of the U.P. Electricity Supply Code, 2005, a recovery citation against the petitioner shall not be enforced; the respondents remain free to recover the same dues from respondent no. 7. ¶ 1

PRINCIPLE TAGS

arrears-run-with-the-premises

The Allahabad High Court connected Mukesh Goel's writ against a recovery citation with Writ-C No. 8370 of 2016, in which clause 4.3(f)(v) of the U.P. Electricity Supply Code, 2005 is under challenge, issued notice to the Advocate General and respondent no.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF CLAUSE 4.3(F)(V) OF THE U.P. ELECTRICITY SUPPLY CODE, 2005

Notice issued to the Advocate General on the connected writ; the clause was not examined on merits. ¶ 1

NOT DECIDED — PETITIONER'S LIABILITY FOR THE ELECTRICITY DUES SOUGHT TO BE RECOVERED

Only an interim stay of the recovery citation was granted; merits of liability were left open. ¶ 1